NORTHWIND DATA PROCESSING AGREEMENT

This Agreement is made between Northwind Data Ltd (the "Vendor") and Bluepeak Retail Inc. (the "Customer").

1. Definitions and Interpretation

1.1 "Services" means the services described in Schedule 1 to this Agreement.

1.2 "Confidential Information" means all non-public information disclosed by one party to the other.

1.3 References to clauses and Schedules are to the clauses of and Schedules to this Agreement.

2. Term and Renewal

2.1 This Agreement commences on 15 June 2025 and continues for an initial term of 24 months.

2.2 It renews automatically for successive periods of twelve months unless either party gives 60 days' written notice of non-renewal.

3. Fees and Payment

3.1 The Customer shall pay each undisputed invoice within 45 days of receipt.

3.2 Overdue amounts accrue interest at 6% per annum from the due date until payment.

4. Service Levels

4.1 The Vendor shall ensure that the Services are available at least 99.5% of the time in each calendar month.

4.2 If availability falls below this level the Customer is entitled to a service credit of 10% of the monthly fee for each full percentage point of shortfall.

5. Data Protection

5.1 The Vendor shall process Personal Data only on the Customer's documented instructions and in accordance with Article 28 of the GDPR.

5.2 The Vendor shall notify the Customer of any personal data breach within 72 hours of becoming aware of it.

6. Information Security

6.1 The Vendor shall maintain certification to SOC 2 Type II throughout the term.

6.2 The Vendor shall commission an independent penetration test of the Services twice a year and share a summary of the findings.

7. Intellectual Property

7.1 Each party retains ownership of the intellectual property it owned before the Effective Date.

7.2 The Customer owns all outputs generated from its data.

8. Limitation of Liability

8.1 Subject to clause 8.3, the total aggregate liability of either party under this Agreement shall not exceed USD 1,000,000.

8.2 Neither party is liable for indirect or consequential loss.

8.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, or for fraud.

9. Termination

9.1 Either party may terminate this Agreement by written notice if the other commits a material breach that is not remedied within 45 days of notice of the breach.

9.2 The Customer may terminate this Agreement for convenience on 90 days' written notice to the Vendor.

9.3 On termination the Vendor shall return or delete the Customer's data within 30 days.

10. Confidentiality

10.1 Each party shall keep the other's Confidential Information secret and use it only to perform this Agreement.

10.2 These obligations continue for 3 years after termination or expiry.

11. Force Majeure

11.1 Neither party is liable for delay caused by events beyond its reasonable control, including flood, fire, war and failure of public utilities.

11.2 If the event continues for more than 90 days either party may terminate this Agreement by written notice.

12. Governing Law and Jurisdiction

12.1 This Agreement is governed by the laws of the State of New York.

12.2 The courts of New York County have exclusive jurisdiction over any dispute arising from this Agreement.

13. Audit Rights

13.1 The Customer may audit the Vendor's compliance with this Agreement once per year on 15 Business Days' notice.

13.2 Audits shall follow the procedure set out in Schedule 4.